

Ram Asrey v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 April 2014 · WRIT - C No. - 20753 of 2014 · **Writ disposed; Clause 6.5 application to be decided in accordance with law**

HEADNOTE

A pending application under Clause 6.5 of the U.P. Electricity Supply Code, 2005 is to be considered and decided by the competent authority in accordance with law and within the time stipulated in that clause. The High Court will not examine the consumer's billing claim on merits in a writ seeking to stall recovery and to have the application decided.

FACTUAL SUMMARY

Ram Asrey sought a mandamus restraining recovery of electricity dues and directing decision of his application under Clause 6.5 of the U.P. Electricity Supply Code, 2005. He had earlier sued the Power Corporation for injunction; the suit and the subsequent appeal were both dismissed. He then applied to the Corporation on 21 June 2013 under Clause 6.5. That application remained pending. Corporation counsel submitted that if the petitioner fulfilled the clause's conditions, the competent authority would decide it.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending-billing-objection

HOLDING

Where a consumer's application under Clause 6.5 remains pending before the competent authority, a writ seeking to restrain recovery of dues and to have that application decided will be disposed of by leaving it to that authority to consider and decide the application in accordance with law, within the time stipulated in Clause 6.5, without the Court expressing any opinion on the merits of the claim. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S CLAUSE 6.5 BILLING CLAIM AND THE PRAYER TO RESTRAIN RECOVERY OF DUES

The Court expressly declined to express any opinion on the merits, which were left to the competent authority under Clause 6.5. ¶ 6